

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 742

Introduced by McKinney, 11.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to schools; to require policies allowing a
- 2 student in seventh or eighth grade to participate in high school
- 3 sports as prescribed; to provide powers and duties to school boards
- 4 and governing authorities of private, denominational, and parochial
- 5 schools; to provide powers and duties to the State Board of
- 6 Education; and to declare an emergency.
- 7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1)(a) Beginning with the 2026-27 school year, each
2 school board and each governing authority of an approved or accredited
3 private, denominational, or parochial high school shall develop and adopt
4 a policy that allows a student in seventh or eighth grade to participate
5 and compete in the high school athletic program under the following
6 conditions as verified by the principal and athletic director of the high
7 school:

8 (i) The student possesses the appropriate skill level as approved by
9 the appropriate coach or athletic director at such school on a sport-
10 specific level with additional scrutiny given in relation to skill and
11 safety if the student is requesting to participate or compete in a high
12 school contact sport;

13 (ii) The student has had a documented physical or evaluation by a
14 health care professional to ensure safe participation with additional
15 scrutiny given if the student is requesting to participate and compete in
16 a high school contact sport;

17 (iii) The student has provided written consent from the student's
18 parent, legal guardian, or educational decisionmaker as defined in
19 section 79-530; and

20 (iv) Such participation by a seventh or eighth grade student in the
21 high school sport requested is not prohibited by an athletic association
22 such school is a member of, any state or federal law, or any rules and
23 regulations adopted and promulgated by the State Board of Education.

24 (b) A student authorized to participate or compete in a high school
25 sport pursuant to this section shall no longer be eligible to participate
26 in such sport at the seventh or eighth grade level.

27 (2) A student's participation in a high school sport pursuant to
28 this section shall not impact the student's eligibility to participate or
29 compete in such sport while the student is in high school.

30 (3) The State Board of Education may adopt and promulgate rules and
31 regulations to carry out this section.

1 **Sec. 2.** Since an emergency exists, this act takes effect when
2 passed and approved according to law.